
NEWS

San José Residents Sue City, Saying Flock Safety Cameras Allow ‘Mass Surveillance’

The lawsuit alleges that the use of the automated license plate reader technology is unconstitutional and seeks class-action status on behalf of all residents.

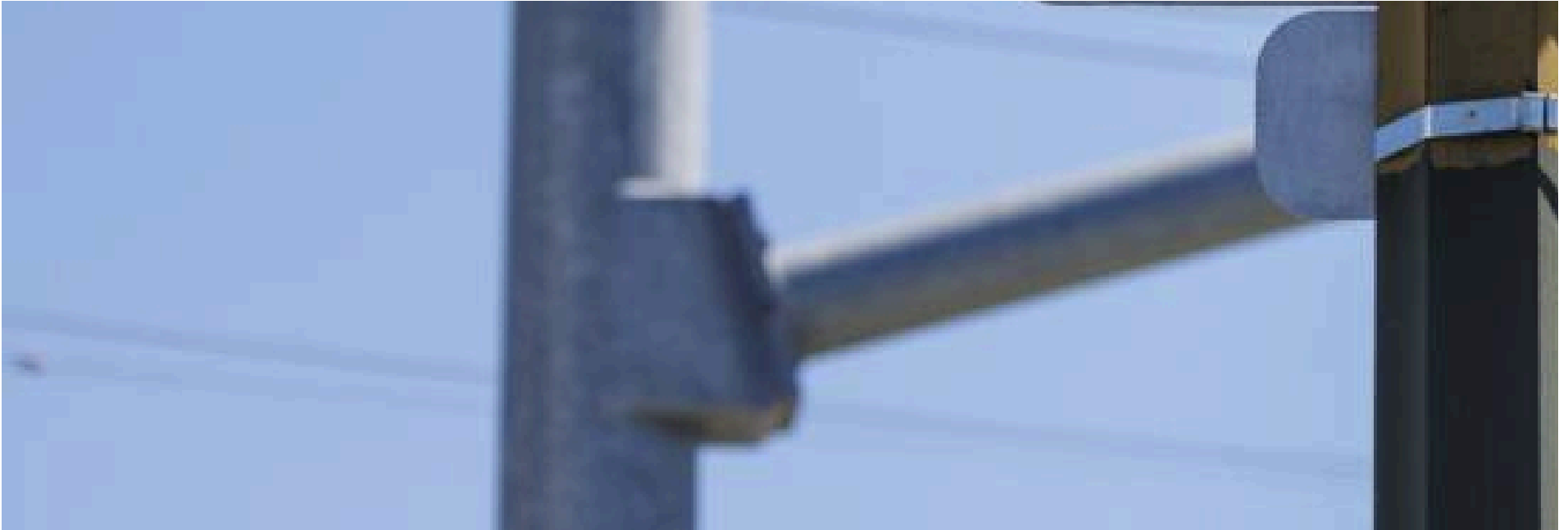
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By Katie DeBenedetti









Flock cameras monitor the intersection at McKee Road and North White Road in San José on April 2, 2026. The lawsuit alleges the use of the automated license plate reader technology is unconstitutional, and seeks class-action status on behalf of all residents.

Residents are suing [San José](#) over its Flock Safety cameras, alleging that the [city's use of the license-plate reading technology](#) creates an unconstitutional “mass surveillance system.”

The civil rights suit, filed in federal court on Wednesday, said the cameras allow the San José Police Department to monitor residents’ movements in violation of the Fourth Amendment, which states that “the right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.” “San José is operating nearly 500 license plate reader cameras connected with AI technology around the city to essentially spy on everyday people going about their business,” said Daniel Woi.

The three San José residents bringing the suit have alleged that the city’s system of readers conducts constant monitoring, allowing the SJPd and other agencies to track residents’ whereabouts. They’re seeking a class-action status on behalf of all city dwellers who have or will have their license plate data recorded.

“No officer ever has to establish probable cause, swear to the facts in a warrant application, or await the approval of a judge,” the suit said. “Officers can run searches based on a hunch, idle curiosity, or a desire to know more about a person’s life.”







A Flock Safety license plate recognition camera is seen near the intersection of Marine Street and Arapahoe Avenue in Boulder on March 5, 2026. (Matthew Jonas/MediaNews Group/Boulder Daily Camera via Getty Images)

Wednesday’s legal challenge follows a similar state-level suit [brought against San José by civil liberties groups in the fall](#), alleging their use of Flock Safety cameras violates the California constitution. It comes as dozens of municipalities across the U.S. terminate or rethink contracts with Flock, a leading company selling the technology, over growing privacy and legal concerns stemming from its data sharing practices. Data sharing is an advertised part of Flock’s offerings — the company offers contracted agencies multiple options to share data with other customers, including “National” and “State” lookups.

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City officials have said this can be helpful to follow a suspect’s vehicle movements between nearby jurisdictions. In recent months, though, some Bay Area cities have amended their controls and policies. More than two dozen municipalities across the U.S. — including [Santa Cruz](#) and [Los Altos Hills](#) — have terminated contracts with Flock altogether. Others, like Oakland and San Francisco, have paused or limited their use. But the San José residents represented in the suit say that the city’s more than 470 cameras have created a system of “mass surveillance.” Plaintiff Zhaocheng Anthony said in court documents: “Pervasively tracking a person’s movements and then storing them in a government database ... creates precisely the type of suffocating atmosphere of surveillance the Framers adopted the First Amendment to prevent.” The residents say that Flock can create “vehicle journey maps” that can be traced to a driver, allowing the city to track residents’ routines, habits and outings, especially to sensitive locations like schools, places of worship and government buildings.







San José Mayor Matt Mahan helps to install a Flock Safety brand automated license plate reader on April 23, 2024. Civil liberties groups are now suing the city and Mahan over the technology's uses. (Joseph Geha/KQED)

In March, [San José's city council put restrictions](#) on where the city can position cameras, including near reproductive health care facilities and places of worship; reduced the default data retention period to 30 days; and required the city to publish a list of camera locations. "The San Jose Police Department has robust, transparent policies in place to ensure that the information is not misused in any way, including policies that prohibit direct access to the data to the public," SJPD said it conducted a review of internal and external searches in 2025, and found that "all searches were in compliance with department policy and California law."

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